

61. Who among the following can participate in the deliberations of Lok Sabha while being a member of Rajya Sabha?

- (a) Nominated member of Rajya Sabha who is an expert in a field
- (b) Deputy Chairperson of Rajya Sabha
- (c) Minister who is a member of Rajya Sabha
- (d) Leader of the House in Rajya Sabha
- (e) None of these

Chhattisgarh P.C.S (Pre) 2013

Ans. (c)

The minister who is a member of Rajya Sabha may participate in the deliberation of Lok Sabha, while being a member of Rajya Sabha.

The Parliament (3)

*The Parliament of India is the **supreme legislative body**. *It is also known as the Westminster model of government. *The Right to amend the constitution is vested in the Parliament under **Article 368**. *Maximum time gap between the two sessions of parliament is **6 months**. *Lok Sabha speaker, Deputy speaker, Secretary general, Rajya Sabha chairman, Deputy chairman etc. are called officials of parliament. *There are usually three sessions in a year, i.e. **Budget session, Monsoon session and Winter session**. *If any member of Parliament remains absent for 60 days without informing to the respective house, then his **membership shall be terminated**. ***Article 105** of the Indian constitution lays down the privileges and immunities of the members of Parliament. *For making International treaties effective, the Parliament can make laws in the state list without the consent of the state. *Speaker or chairman of the House can prohibit any member and allow any other member to speak. This is called **Yielding the floor**. *When a member of parliament changes their allegiance or votes against their party in the parliament, it is called **Crossing the floor**. ***Zero Hour** is a unique feature of the Parliamentary system of India. It can be a maximum of one hour. Which is around **12 noon to 1:00 pm** in Lok Sabha. *A **money bill** can only be introduced in Lok Sabha and that too on the recommendation of the President of India. It cannot be introduced in Rajya Sabha. *Rajya Sabha cannot reject or amend money bill and must return it within **14 days** after which Lok Sabha may accept or reject its recommendations. *According to **Article 108**, the President summons both the houses for a joint sitting to resolve the deadlock between the two houses over the passage of a bill. *According to **Article 118(4)** the speaker shall preside over a joint sitting of two houses of parliament. *The Joint sitting of two houses of Parliament is called up only for ordinary bills

or financial bills. *Since 26 January, 1950 joint sitting of two houses has been invoked only **three times- the first one, was in 1961 for the Dowry prohibition bill, second one was for the Banking service commission (repeal) Bill in 1978 and third one in, 2003 for the prevention of terrorism Bill**. *Any legal bill can be introduced in any house of parliament. *The Speaker has power to decide **whether a bill is a money bill or not**. *To withdraw the funds from the Consolidated Fund of India, the government needs to pass appropriation bills. *According to **Article 116** of the Indian constitution, when an appropriation bill is not passed and the government needs funds then Lok Sabha has the power to withdraw funds from the consolidated fund of India through a Vote on Account, for a fixed period of time. *The **Estimates Committee** is the **largest committee of Parliament**. It consists of **30 members** (all from the Lok Sabha). There is no Rajya Sabha member in the Estimates Committee. *The Secretariat of the Indian Parliament is free from the Government. *Indian Parliament established control over administration through parliamentary committees.

1. Consider the table given below :

Parliament	
(Council of States)	(House of the People)
Not more than	Not more than 552
250 members	members and
12 nominated	not more than 530
not more than 238	representatives of
representatives of	States plus not more
States and Union	than 2 nominated
Territories	Anglo-Indians and X.

Which one of the following will fit in the place marked 'X'?

- (a) Ministers who are not members of Parliament but who have to get themselves elected to either House of Parliament within six months after assuming office
- (b) Not more than 20 nominated members
- (c) Not more than 20 representatives of Union Territories
- (d) The Attorney General who has the right to speak and take part in the proceedings of either House of Parliament

I.A.S. (Pre) 1995

Ans. (c)

The Parliament of India consists of (1) President (2) Lok Sabha (3) Rajya Sabha. The House of People shall consist of—
 (a) Not more than 530 representatives of States [Art. 81(1) (a)] chosen by direct election from territorial constituencies in the state.
 (b) Not more than 20 representatives of Union Territories [Art. 81(1)(b)];

(c) President, if he is of the opinion that the Anglo-Indian Community is not adequately represented in the House of the People, could nominate not more than two members of that community to the House of the people.

Note - It is noteworthy that the arrangements for the nomination of the Anglo-Indian community in the Lok Sabha have not been extended beyond the stipulated date (25 January, 2020) by 'The Constitution (One hundred and Fourth Amendment) Act, 2019.

Thus, in the question, 'X' stands for 20 representatives of UTs. So option (c) is correct.

2. The President of India addresses the Parliament under Article 87 of the Indian Constitution

- (a) in a joint sitting of both Houses of Parliament.
- (b) in a joint meeting of both Houses of Parliament.
- (c) in a joint session of both Houses of Parliament.
- (d) both Houses of Parliament assembled together.

R.A.S/R.T.S (Pre) 2018

Ans. (d)

Article 87 deals with the special address by the President. It says, "At the commencement of the first session after each general election to the House of the People and at the commencement of the first session of each year, the President shall address both houses of the Parliament, assemble together and inform the Parliament of the causes of its summon."

3. With reference to the special address of the President of India, which of the following/statements is/are correct?

- 1. The President addresses the joint meeting of both houses of Parliament at the commencements of the first session after each general election of the house of the people and at the commencement of the first session of each year.**
- 2. The President in his address informs the Parliament of the causes of its summons.**

Select the correct answer using the codes given below.

Codes:

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

U.P.P.C.S. (Pre) 2021

Ans. (c)

All executive power is vested in the President of India. The Council of Ministers, headed by the Prime Minister, aids and advises the President, who exercises his powers in accordance with such advice. Article 87(1) of the Constitution provides two instances when the President specially addresses both

Houses of Parliament. The President of India addresses both the Rajya Sabha and the Lok Sabha at the beginning of the first Session after each general election when the reconstituted lower house meets for the first time. The President also addresses both the houses at the beginning of the first session of each year. The President's speech essentially highlights the government's policy priorities and plans for the upcoming year. The address provides a broad framework of the government's agenda and direction.

4. Which of the following are/is stated in the Constitution of India?

- 1. The President shall not be a member of either House of Parliament.**
- 2. The Parliament shall consist of the President and the two Houses.**

Choose the correct answer from the codes given below:

- (a) Neither 1 nor 2
- (b) Both 1 and 2
- (c) 1 alone
- (d) 2 alone

U.P.P.C.S. (Pre) 2024

I.A.S. (Pre) 1997

Ans. (b)

Article 59 (1) of the Indian Constitution says that the President shall not be a member of either House of the Parliament and Article 79 says that the Parliament of Union shall consist of President and two Houses. So both the statements are correct.

5. The President

- (a) is not a part of the Parliament
- (b) is a part of the Parliament
- (c) is a part of the Parliament and sits in the Parliament
- (d) can vote in the Parliament
- (e) None of the above/More than one of the above

64th B.P.C.S. (Pre) 2018

Ans. (b)

Under the Constitution, the Parliament of India consists of three parts : the President, the Council of States and the House of the People.

Though the President of India is not a member of either House of Parliament and does not sit in the Parliament to attend its meetings, he is an integral part of the Parliament.

6. The Parliament is formed by which of the following?

- (a) Rajya Sabha and Lok Sabha
- (b) Lok Sabha and President
- (c) Lok Sabha, Rajya Sabha and President
- (d) Prime Minister, Lok Sabha and Rajya Sabha

M.P. P.C.S. (Pre) 2023

Ans. (c)

See the explanation of the above question.

7. Formation of Parliament is completed by -

- (a) Only House of the People
- (b) House of the People and Prime Minister
- (c) House of the People, Council of States and Prime Minister
- (d) House of the People, Council of States and President.

U.P. Lower Sub. (Pre) 2002

Ans. (d)

See the explanation of the above question.

8. The Indian Parliament consists of

- (a) President
- (b) Rajya Sabha and Lok Sabha
- (c) President, Rajya Sabha and Lok Sabha
- (d) None of the above

M.P.P.C.S. (Pre), 2021

Ans. (c)

See the explanation of the above question.

9. The Parliament of India consist of –

- (i) President (ii) Rajya Sabha
- (iii) Lok Sabha (iv) Vice-President

Select the correct answer using the code given below :

Code :

- (a) (i), (ii) and (iii)
- (b) (ii) and (iii)
- (c) (ii), (iii) and (iv)
- (d) (i), (ii), (iii) and (iv)

U.P. Lower Sub. (Mains) 2013

U.P.P.C.S. (Pre) 2014

Ans. (a)

See the explanation of the above question.

10. Indian Parliament consists of –

- (a) Lok Sabha and Rajya Sabha
- (b) Lok Sabha, Rajya Sabha, and Prime Minister
- (c) Speaker and Lok Sabha
- (d) President and both the House of Parliament

U.P.P.C.S. (Mains) 2004, 2011

U.P.P.C.S.(Pre) 2012

Ans. (d)

See the explanation of the above question.

11. Consider the following and identify the correct composition of Indian parliament :

- (a) Lok sabha and Rajya sabha
- (b) Lok Sabha + Speaker of Lok Sabha and Chairperson of Indian

(c) President _ Rajya Sabha + Lok Sabha

(d) president + Vice-president + Rajya Sabha + Lok Sabha

Jharkhand P.C.S. (Mains) 2016

Ans. (c)

See the explanation of the above question.

12. Which of the following constitute the Indian Parliament?

- (a) President, Lok Sabha and Rajya Sabha
- (b) Lok Sabha, Rajya Sabha, and Prime Minister
- (c) Lok Sabha, Rajya Sabha and Minister for Parliamentary Affairs
- (d) Lok Sabha, Rajya Sabha, and Parliament Secretariat.

U.P.P.C.S. (Pre) (Re. Exam) 2015

Uttarakhand P.C.S. (Pre) 2012

Ans. (a)

See the explanation of the above question.

13. Indian Parliament Consists of

- (a) Lok Sabha and Rajya Sabha
- (b) The President, Lok Sabha and Rajya Sabha
- (c) Lok Sabha, President and Council of Ministers
- (d) Lok Sabha, Rajya Sabha and Council of Ministers

U.P.P.C.S. (Pre) 2017

Ans. (b)

See the explanation of the above question.

14. Who/which of the following is not an integral part of Parliament?

- (a) President (b) Vice-President
- (c) Lok Sabha (d) Rajya Sabha

U.P.P.C.S. (Mains) 2013

Ans. (b)

According to Part V of the Constitution, under Article 79, it is stated that there shall be a Parliament for the Union which shall consist of a President and two Houses to be known respectively as the Council of States and House of the People. These three are integral parts of the Parliament, but the Vice-President is not a part of Parliament.

15. Minimum how many times the Parliament has to meet in a year:

- (a) Once (b) Twice
- (c) Thrice (d) Four times

U.P.P.C.S. (Pre) 1995

Ans. (b)

Article 85(1) imposes a duty upon the President to summon each House of Parliament at such intervals that six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session. So, the Parliament must meet at least twice a year.

16. What should be the interval between the two consecutive sessions of Parliament?

- (a) Four Month (b) Six Month
(c) 1 Year (d) Fixed by the President

39th B.P.S.C. (Pre) 1994

Ans. (b)

See the explanation of the above question.

17. The Officers of the Parliament include –

1. Speaker, Lok Sabha
2. Deputy Speaker, Lok Sabha
3. Secretary-General, Lok Sabha
4. Chairman of the Rajya Sabha

Select the correct answer from the codes given below:

Code :

- (a) 1 and 2 (b) 1, 2 and 3
(c) 1, 3 and 4 (d) All the four

**U.P. Lower Sub (Pre) 2013
U.P. U.D.A./L.D.A. (Pre) 2010**

Ans. (d)

According to the Constitution of India, the Officers of the Parliament include the Speaker of the Lok Sabha, the Deputy Speaker of Lok Sabha, Secretary General of the Lok Sabha and the Chairman of the Rajya Sabha.

18. The membership of a Parliament/Legislative Assembly's membership may be terminated if he remains absent without informing to respective House for a term of -

- (a) 60 days (b) 90 days
(c) 120 days (d) 150 days

M.P.P.C.S. (Pre) 1992

Ans. (a)

Article 101 of the Constitution is about 'Vacation of seats.' Clause 4 of the Article states that if a member of either House of the Parliament is absent from all meetings for a period of 60 days, the House may declare his seat vacant; but in the calculation of these 60 days, any period for which House is prorogued or is adjourned for more than four consecutive days shall be excluded.

19. A seat of a M.P. can be declared vacant if he absents himself from the house for a continuous period of

- (a) Six months (b) Two months
(c) Three months (d) One year
(e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

According to Article 101(4) of the constitution, "If for a period of sixty days, a member of either House of Parliament is without permission of the House absent from all meetings thereof, the House may declare his seat vacant: Provided that in computing the said period of sixty days no account shall be taken of any period during which the House is prorogued or is adjourned for more than four consecutive days.

20. After how many days of absence from Parliament without permission can a M.P. be disqualified?

- (a) 30 days (b) 60 days
(c) 90 days (d) 120 days

U.P.P.C.S. (Pre) 2018

Ans. (b)

See the explanation of the above question.

21. For the first time, a MP/MLA was disqualified from the membership on the ground of remaining absent from sixty consecutive meetings of the House without the permission. He was a member of –

- (a) Council of States
(b) House of People
(c) Punjab Legislative Assembly
(d) Rajasthan Legislative Assembly

U.P.P.C.S. (Mains) 2004

Ans. (a)

The first member, who was declared disqualified for remaining absent for 60 sixty days without the permission of the House, was from the Council of States from Punjab in the year 2000. The person was an Independent Member of Parliament named Barjinder Singh Hamdard.

22. If any member of Parliament is elected for any State Legislature, within how many days he has to resign from the State Legislature, otherwise his membership of Parliament will become void?

- (a) 10 days (b) 14 days
(c) 30 days (d) None of the above

Chhattisgarh P.C.S. (Pre) 2022

Ans. (b)

According to Article 101(2) of the Constitution (Rule 2 of the prohibition of simultaneous membership rules, 1950), A Person cannot be a member of the Parliament and State Legislature at the same time. If the person is so elected, his seat in Parliament becomes vacant if he fails to resign his seat in the Legislature within 14 days.

23. Privilege motion can be raised against a Minister when he –

- (a) Loses confidence in the Government.
- (b) Absents himself for a long time.
- (c) Withholds facts of a case or gives distorted versions of facts.
- (d) Limit value.

Chhattisgarh P.C.S. (Pre) 2011

Ans. (c)

Under the Parliamentary Rules and Procedures, the Privilege Motion can be raised against a Minister if any fact of a case is withheld by him or a distorted version is given.

24. Which Article of the Constitution restrict a Member of Parliament to hold the office of profit ?

- (a) Article 102 (1) (c) (b) Article 102 (1) (b)
- (c) Article 102 (1) (d) (d) Article 102 (1) (a)

70th B.P.S.C. Pre-2024

Ans. (d)

Article 102(1)(a) of the Constitution prohibits a Member of Parliament from holding an office of profit. According to this article, a person will be disqualified from being elected as a member of any House of Parliament and from being a member, if he holds an office under the Government of India or the Government of any State, except for an office declared by law by Parliament not to disqualify its holder. if he holds an office of profit.

25. Consider the following statements :

1. **The Parliament (Prevention of Disqualification) Act, 1959 exempts several posts from disqualification on the grounds of 'Office of Profit'.**
2. **The above-mentioned Act was amended five times.**
3. **The term 'office of Profit' is well-defined in the Constitution of India.**

Which of the statements given above is/are correct?

- (a) 1 and 2 only (b) 3 only
- (c) 2 and 3 only (d) 1, 2 and 3

I.A.S. (Pre) 2019

Ans. (a)

The expression 'office of profit' has not been defined in the Constitution of India or in the Representation of The People Act, 1951. Article 102 of the Constitution provides that a person shall be disqualified from being chosen as a Member of Parliament (MP), if he holds an office of profit under the Government of India or any State. However, the Parliament can declare by law that holding certain offices will not lead to disqualification. The Parliament (Prevention of Disqualification) Act, 1959 lists certain offices of profit under central and state governments. The Parliament (Prevention of Disqualification) Act, 1959 was amended five times. So only statement (1) and (2) are correct. Right answer is option (a).

26. Who will decide the Office of Profit?

- (a) President and Governor
- (b) Union Parliament
- (c) Supreme Court
- (d) Union Public Service Commission

U.P.P.C.S. (Pre) 2006

U.P.P.C.S. (Pre) 2000

Ans. (a & b)

Analysis – I

The Office of Profit is decided by the Union Parliament for the Union under Article 102(1)(a) and by State Legislatures for the States under Article 191(1)(a)

Analysis – II

Whether a person is disqualified or not on the basis of his post of profit for the Membership of Parliament or state Legislature, Its decision –

According to Article 103 (1) and (2) in the centre, the President shall do so on the advice of the Election Commission and in accordance with Article 192 (1) and (2) in the states, the Governor shall do so on the advice of the Election Commission.

Hence, according to analysis-I, the correct answer will be option (b), and according to analysis-II, the correct answer will be option (a).

27. Which one of the following provisions deals with the privileges and immunities of the Members of Parliament under the Constitution of India?

- (a) Article 104 (b) Article 105
- (c) Article 82 (d) Article 117

Chhattisgarh P.C.S. (Pre) 2011

Ans. (b)

Article 105 of the Constitution provides the powers, privileges, and immunities of the Houses of Parliament and its members and committees thereof.

28. Which one of the following is not a collective privilege of the members of Parliament?

- (a) Freedom of debates and proceedings.
- (b) The Rights to regulate the internal matters of the Parliament
- (c) Freedom from attendance as Witness.
- (d) The privileges of excluding strangers from the house.

U.P.P.C.S. (Pre) 2017

Ans. (c)

Parliamentary privileges are some of the peculiar rights enjoyed by each House collectively as a constituent part of parliament and by member of each House individually, without which they could not discharge their functions efficiently and effectively. Some of the collective privileges of the members of Parliament are -

- (I) To prohibit the publication of its debates and proceedings.
- (II) To exclude strangers from the House.
- (III) To regulate its own procedure and conduct of its business.
- (IV) To punish members as well as outsiders for the breach of privileges or contempt of the House.
- (V) Prohibition of arrest and service of legal process within the precincts of the House without the permission of chairman/speaker.
- (VI) Right of the member to receive immediate information of the arrest, detention, conviction, imprisonment or release of Member.

Notably, freedom from attendance as a witness is an individual privilege of a member of Parliament.

29. Under which Article of the Constitution the Courts have been prohibited from inquiring the proceedings of the Parliament?

- (a) Article 127
- (b) Article 122
- (c) Article 126
- (d) Article 139

U.P.U.D.A./L.D.A. (Spl) (Mains) 2010

Ans. (b)

Under Article 122 of the Constitution, the Courts have been prohibited from inquiring into proceedings of the Parliament.

30. Who among the following has the right to vote in the elections to both the Lok Sabha and the Rajya Sabha?

- (a) Elected members of the Lower House of the Parliament
- (b) Elected members of the Upper House of the Parliament
- (c) Elected members of the Upper House of the state Legislature
- (d) Elected members of the Lower House of the state Legislature

I.A.S. (Pre) 1995

Ans. (d)

The elected members of the Lower House of the state Legislature, i.e., the Legislative Assembly, have the right to vote in the elections of both Lok Sabha (as a citizen's right) and Rajya Sabha. In addition, they vote for the election of the President of India.

31. Which one of the following statement is correct?

- (a) All the members of Council of States are elected by State Legislative Assemblies.
- (b) As the Vice-President is the ex-officio Chairman of the Rajya Sabha, only a member of the Rajya Sabha can contest for the office of the Vice-President.
- (c) A point difference between the Lok Sabha and the Rajya Sabha is that while a candidate to Lok Sabha can contest from any State in India, a candidate to the Rajya Sabha should ordinarily be a resident of the State from where he is contesting.
- (d) The Constitution of India explicitly prohibits the appointment of a nominated member of the Rajya Sabha to the post of minister.

I.A.S. (Pre) 1994

Ans. (*)

According to the provision at the time of question year option (c) was correct and the other options were wrong.

Note: The Representation of the People Act, 1951 was amended, in the year 2003, so the situation has changed now. The requirement, that a candidate contesting an election to the Rajya Sabha from a particular State should be a voter in that particular State, has been removed. Supreme Court in 2006 upheld the Constitutional validity of this Amendment.

32. Which one of the following statements is correct?

- (a) Only the Rajya Sabha and not the Lok Sabha can have nominated members
- (b) There is a Constitutional provision for nominating two members belonging to the Anglo-Indian community to the Rajya Sabha
- (c) There is no Constitutional bar for nominated members to be appointed as a Union Minister
- (d) A nominated member can vote both in the Presidential and Vice-Presidential elections

I.A.S. (Pre) 2003

Ans. (a) & (c)

Both Houses of Parliament had nominated members. 12 in Rajya Sabha and 2 in Lok Sabha (Anglo-Indian Community). Under the amendment to Article -334 by 'The Constitution (One Hundred and Fourth Amendment) Act, 2019 the arrangements of nomination for the representation of Anglo-Indian community in the Lok Sabha and State Legislative Assemblies have not been extended beyond the stipulated date (25 January, 2020).

Therefore, the arrangements of nominating Anglo-Indian members in the Lok Sabha have ended. Article 54 states that election of the President shall be done by an Electoral College consisting of the elected members of both the Houses of the Parliament and Legislative Assembly of the State. Thus, the nominated members are not eligible to vote for the election of President, but there is no bar for nominated members to be appointed as minister. He must be a member of Parliament or must become a member within six months after the appointment as a Minister.

33. The Parliament of India has the 'Power to Legislate' for the following—

1. Union of India
2. Territory of India
3. Indian subject resident and their property situated anywhere in the world

Select the correct answer from the code given below—
Code—

- (a) Only 1 (b) 1 and 2 only
(c) 2 and 3 only (d) 1, 2 and 3

U.P.R.O./A.R.O. (Mains) 2021

Ans. (d)

The Parliament of India has the power to Legislate for the Union of India, the Territory of India and Indian subjects/ resident and their property situated anywhere in the world.

34. Parliament may legislate on any subject of State List when-

- (a) There is assent of President
- (b) Resolution thereof has been passed by State
- (c) In any situation
- (d) General permission of State Legislative Assembly has been received

U.P.P.C.S. (Pre) 2012

Ans. (b)

See the explanation of the above question.

35. Union Parliament may legislate on any subject of State List –

1. To Implement International Agreements
2. By consent of State
3. When Proclamation of Emergency is in operation.
4. In national interest and after a resolution passed by Council of states with 2/3 majority.

Choose the correct option using codes given below:

- (a) 1,2 and 3 (b) 2,3 and 4
(c) 1,2 and 4 (d) All of above

U.P.P.C.S. (Mains) 2005

Ans. (d)

The Parliament may legislate on any subject of the State List in all of the given situations. According to Article 253 to implement any international agreement, treaty or convention; according to Article 252- for two or more States by their consent; according to Article 249- in the national interest when a resolution has been passed by the Council of States by 2/3 majority and according to Article 357- when the proclamation of emergency is in operation. Thus option (d) is the correct answer.

36. Under which article of the Indian Constitution, the Parliament can make laws on State List subject for giving effect to international agreements?

- (a) Article – 252 (b) Article – 249
(c) Article – 250 (d) Article – 253

U.P.P.C.S. (Pre) 2016

U.P.P.C.S. (Mains) 2016

U.P.R.O./A.R.O. (Pre) 2021

Ans. (d)

See the explanation of the above question.

37. The Indian Parliament cannot legislate on a subject of state-list unless –

1. The President of India directs it to do so.
2. The Rajya Sabha passes a resolution that it is necessary to do so in national interest,
3. The Speaker of the Vidhan Sabha certifies that the legislation is necessary.
4. There is a national emergency.

Considering the above statements, select the correct answer from the codes given below:

Code :

- (a) 1, 2 and 3 (b) 2, 3 and 4
(c) 1 and 3 (d) 2 and 4

U.P.P.C.S. (Mains) 2005

Ans. (d)

See the explanation of the above question.

38. The Parliament can make law for the whole or any part of India for implementing International Treaties –

- (a) With the consent of all the states
- (b) With the consent of majority of states
- (c) With the consent of the states concerned
- (d) Without the consent of any state

U.P.P.C.S. (Pre) 2006

I.A.S. (Pre) 2000, 2013

70th B.P.S.C. (Re-Exam) 2024

Ans. (d)

Article 253 empowers the Parliament to legislate on matters of State List without its permission or consent if the implementation of any treaty, agreement or convention with any other country or countries, or any decision made at any international conference, association or another body, is to be done.

39. Who can legislate on the subjects which are not included in any of the lists of subjects given in the Constitution?

- (a) Supreme Court
- (b) Parliament
- (c) State Legislature
- (d) Regional Councils

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (b)

Article 248 of the Indian Constitution provides residual legislative powers to the Parliament. According to Article 248, the Parliament has exclusive power to make any law on any matter not enumerated in the State or Concurrent List.

40. Under which Article(s), the Speaker can allow any member of the House to speak in his/her mother tongue?

- (a) Article 110 (1)
- (b) Article 122 (2)
- (c) Article 120 (1)
- (d) Both (A) and (B)

69th B.P.S.C. (Pre) 2023

Ans. (c)

Article 120 (of the Constitution of India)

(1) Notwithstanding anything in Part XVII, but subject to the provisions of Article 348, business in Parliament shall be transacted in Hindi or in English:

Provided that, the Chairman of the Council of States or Speaker of the House of the People, or person acting as such, as the case may be, may permit any member who cannot adequately express himself in Hindi or in English to address the House in his mother tongue.

41. The Speaker can ask a member of the House to stop speaking and let another member speak. This phenomenon is known as:

- (a) Decorum
- (b) Crossing the floor
- (c) Interpellation
- (d) Yielding the floor

I.A.S. (Pre) 2000

Ans. (d)

To maintain the highest tradition of the Parliamentary System and proper functioning of the Parliamentary Democracy, it is essential for the members of the Parliament to observe a certain standard of conduct, both inside the House as well as outside the House. Their behaviour should enhance the dignity of Parliament and its members in general. Phenomenons given in options, are described as under–

1. While the House is sitting, every member should enter and leave the chamber with **decorum** and in such a manner as not to disturb the proceedings of the House.

2. A member is not to “**cross the floor**,” i.e. pass between the chair and another member while the latter is speaking. A member is not to leave the chamber when the Speaker is addressing the House. Every member has to resume his seat as soon as the Speaker rises to speak or calls out ‘order’.

3. **Interpellation** is a Parliamentary procedure of demanding that a Government official explain some Act or policy.

4. The speaker can stop a member of Parliament from speaking and let another member speak. This phenomenon is known as **yielding the floor**.

42. Time of zero-hour in Parliament is :

- (a) 9 am to 10 am
- (b) 10 am to 11 am
- (c) 11 am to 12 noon
- (d) 12 noon to 1.00 pm

U.P.P.C.S. (Pre) (Re. Exam) 2015

U.P.P.C.S. (Mains) 2015

Ans. (c) & (d)

‘Zero Hour’ is an Indian innovation in the field of Parliamentary procedure. The emergence of zero hour can be traced to the early sixties when many issues of great public importance and urgency began to be raised by members immediately after Question Hour, sometimes with prior permission of the chairman or some other times without such permission. Presently, in Lok Sabha, it is usually from 12:00 noon to 1:00 pm (after the question hour), while in Rajya Sabha it is from 11:00 am to 12:00 noon (before the question hour). It is notable that the time of the question hour in Lok Sabha is 11:00 am to 12:00 noon, while in Rajya Sabha (from 2014) it is 12:00 noon to 1:00 pm.

43. 'Zero Hour' in the working of the Indian Parliament means

- (a) The first hour of the Session
- (b) When privilege motion are accepted
- (c) Hour before question hour
- (d) The time immediately following the question hour

U.P.P.C.S. (Pre) 2021

Ans. (*)

See the explanation of the above question.

44. 'Zero Hour' is the contribution of which country to the Parliamentary System?

- (a) India
- (b) America
- (c) Britain
- (d) Switzerland

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (a)

See the explanation of the above question.

45. What could be the maximum time limit of "Zero Hour" in the Lok Sabha?

- (a) 30 minutes
- (b) One hour
- (c) Indefinite period
- (d) Two hours

U.P.P.C.S. (Mains) 2007

Ans. (b)

See the explanation of the above question.

46. Zero Hour in political jargon refers to-

- (a) Day when no business in Parliament is done
- (b) Suspended motion
- (c) Adjourned time
- (d) Question-answer session

45th B.P.S.C. (Pre) 2001

Ans. (d)

During zero hour, the members can raise matters of importance, especially those that cannot be delayed. It refers to a question and answer session.

47. At which of the following stages general discussion on a Bill takes place in the Lok Sabha?

- (a) During introduction of the Bill
- (b) During second reading
- (c) During report stage
- (d) During third reading

U.P.P.C.S. (Mains) 2006

Ans. (b)

There are three stages under which a Bill has to pass in either the House. At the first stage, leave is asked for the introduction of the Bill and if granted, the Bill is introduced. The Second stage or reading of Bill consists of consideration of Bill which occurs in two stages. At the first stage, the general discussion on the Bill as a whole and the second stage clause-by-clause consideration of Bill as introduced or reported by the Select or Joint Committee. At the third stage reading debate is confined to the argument, after that the member in charge can move that the Bill is passed.

48. When a bill is referred to a joint sitting of both the Houses of the Parliament, it has to be passed by –

- (a) A simple majority of members present and voting
- (b) Three-fourth majority of members present and voting
- (c) Two-third majority of the Houses
- (d) Absolute majority of the Houses

I.A.S. (Pre) 2015

Ans. (a)

According to Article 108(4), if at the joint sitting of the two Houses, the Bill, with such amendments, if any as are agreed to in joint sitting, is passed by a majority of the total number of members of both the Houses present and voting, it shall be deemed to have been passed by both Houses. This indicates that only a simple majority, of members present and voting, is required.

49. What will be happened if President summons for the joint session of Parliament and in the meantime Lok Sabha dissolved?

- (a) Joint session will be held in scheduled time
- (b) Joint session will be cancelled
- (c) Joint session will be held after composition of New Lok Sabha
- (d) Bill will be lapsed

Chhattisgarh P.C.S. (Pre) 2018

Ans. (a)

The President can summon both the Houses to meet in a joint sitting for the purpose of deliberating & voting on the Bill. If the Bill (under dispute) has already lapsed due to the dissolution of the Lok Sabha, no joint sitting can be summoned. But the joint sitting can be held if the Lok Sabha is dissolved after the President has notified his intention to summon such a sitting (as the Bill does not lapse in this case). So option (a) is correct.

50. With reference to the joint sitting of Parliament, which statement/s is/are correct?

- (1) Article 109 provides for the joint sitting of both Houses in certain cases.
(2) The Speaker presides the joint sitting of the two Houses of Parliament.

Select the correct answer using the code given below :

Code :

- (a) Both (1) and (2) (b) Neither (1) nor (2)
(c) Only (2) (d) Only (1)

U.P.P.C.S. (Pre.) 2023

Ans. (c)

Article 108 provides for the joint sitting of both Houses of the Parliament in certain cases. Hence, statement (1) is not correct.

The Speaker presides this joint sitting, hence statement (2) is correct. So, option (c) is the correct answer.

51. Who among the following presides over a joint sitting of two houses of the Parliament?

- (a) President
(b) Prime Minister
(c) Chairman of the Rajya Sabha
(d) Speaker of the Lok Sabha

U.P.P.C.S. (Pre) 2014

Ans. (d)

The Speaker of the Lok Sabha presides over a joint sitting of the two Houses of the Parliament.

52. Who presides over the joint session of both the Houses of the Parliament?

- (a) Speaker (b) Vice-President
(c) President (d) Prime Minister

U.P.P.C.S. (Mains) 2010

Uttarakhand P.C.S. (Pre) 2012

Ans. (a)

Article 118 of the Constitution of India is related to the Rule of Procedure. Under Article 118(4); A Joint session of the two Houses is presided over by the Speaker of the Lok Sabha. During the absence of the Speaker from any joint sitting, it is presided over by the Deputy Speaker of the House or if he is also absent, the Deputy Chairman of the Council of States and if he is also absent such other person as may be determined by the members present at a sitting, shall preside.

53. Who, among the following, presides over the joint sitting of Lok Sabha and Rajya Sabha?

- (a) Chairman Rajya Sabha (b) Speaker

(c) Prime Minister

(d) Protem Speaker

U.P.P.C.S. (Mains) 2005

Ans. (b)

See the explanation of the above question.

54. The joint session of both Houses of Parliament is presided over by –

- (a) President
(b) Vice-president
(c) Speaker of Lok Sabha
(d) Chief Justice of India

Uttarakhand P.C.S. (Pre) 2010

U.P. Lower Sub. (Pre) 2009

Ans. (c)

See the explanation of the above question.

55. Who among the following is authorised to preside over the joint session of the Parliament?

- (a) President of India
(b) Vice-President of India
(c) Prime Minister of India
(d) Speaker of the Lok Sabha

U.P.P.C.S. (Mains) 2013

U.P. Lower Sub. (Mains) 2013

U.P.R.O./A.R.O. (Mains) 2013

Uttarakhand U.D.A./L.D.A (Pre) 2007

U.P.P.C.S (Mains) 2006

Ans. (d)

See the explanation of the above question.

56. Consider the following statements:

1. The joint sitting of both Houses of the Parliament in India is sanctioned under Article 108 of the Constitution
2. The first joint sitting of Lok Sabha and Rajya Sabha was held in the year 1961
3. The second joint sitting of both Houses of Indian Parliament was held to pass the Banking Service Commission (Repeal), Bill

Which of these statements is/are correct?

- (a) 1 and 2 (b) 2 and 3
(c) 1 and 3 (d) 1, 2 and 3

I.A.S. (Pre) 2003

Ans. (d)

The joint sitting of both the Houses of Parliament in India is mentioned under Article 108 of the Constitution of India. The first joint session took place in 1961 to resolve the issue of the 'Dowry Prohibition Bill,' on which both the Houses had finally agreed. The second joint session took place in 1978 on the Banking Service Commission (Repeal) Bill of 1977. The third joint session of the Parliament was held in March 2002 for Anti-Terrorism Bill (POTA).

57. The Provision of a joint sitting of both the Houses of Parliament is mentioned in the Constitution under the following Article—

- (a) 100 (b) 108
(c) 110 (d) None of the above

U.P.R.O./A.R.O. (Mains) 2021

Ans. (b)

See the explanation of the above question.

58. Joint Session of both the Houses of Parliament is concerned

1. For the election of the President of India
2. For the election of the vice-President of India
3. To pass the Bill relating to the amendment of Constitution
4. To discuss and pass such a Bill where both Houses have different opinion

Select your answer from the following code –

- (a) 1 and 4 (b) 3 and 4
(c) 1 and 2 (d) only 4

40th B.P.S.C. (Pre) 1995

Ans. (d)

According to Article 108 of the Constitution, a joint session of both the Houses is called to discuss such a Bill on which both the Houses have a different opinion. The Joint Session is presided over by the Speaker of the Lok Sabha.

59. The 1st joint meeting of both Houses of the Indian Parliament was held in connection with

- (a) Dowry Abolition Bill
(b) Hindu Code Bill
(c) Bank Nationalisation Bill
(d) Gold Control Bill

U.P. Lower Sub. (Spl) (Pre) 2004

Ans. (a)

See the explanation of the above question.

60. Which of the following statements is/are true in reference to the joint sitting of Parliament for passage of bill?

- (i) Provision for joint sitting is applicable for ordinary bills, financial bills and constitutional amendment bills
(ii) In no situation, Deputy Chairman of Rajya Sabha can preside over the joint sitting
(iii) Quorum of 1/6th of the total number of members of both Houses to be maintained for joint sitting

- (a) (i), (ii) and (iii) (b) (i) and (ii)
(c) (i) and (iii) (d) None of these

Chhattisgarh P.C.S. (Pre) 2021

Ans. (d)

According to Article 108, the provision for the joint sitting is applicable only for ordinary bills, not for financial bills and constitutional amendment bills. The joint sitting of parliament is called by the president of India and presided over by the speaker of Lok Sabha or, in their absence, by the Deputy Speaker of Lok Sabha or, in their absence, the Deputy Chairman of the Rajya Sabha. According to the Rules of Procedure and Conduct of Business in Lok Sabha, a Quorum of 1/10th of the total number of members of both houses is to be maintained for joint sitting.

61. A deadlock between the Lok Sabha and the Rajya Sabha calls for a joint sitting of the Parliament during the passage of

1. Ordinary Legislation
2. Money Bill
3. Constitution Amendment Bill

Select the correct answer using the codes given below

- (a) Only 1 (b) 2 and 3
(c) 1 and 3 (d) 1, 2, and 3

I.A.S. (Pre) 2012

Ans. (a)

Article 108 of the Constitution of India deals with the joint sitting of both the Houses of the Parliament to resolve the deadlock between them. A Joint sitting related to the Money Bill is not required as the Rajya Sabha has no power to block the passage and has to return the Bill within 14 days from the date of receipt. A Constitution Amendment Bill has to be passed by each House as prescribed in Article 368 of the Constitution. Thus, joint sitting is applicable in the case of an ordinary Bill. So, option (a) is the correct answer.

62. Joint sitting of Lok Sabha and Rajya Sabha can take place to resolve deadlock over :

- (a) Ordinary Legislation
- (b) Money Bill
- (c) Constitutional Amendment Bill
- (d) Appropriation Bill

U.P.P.C.S. (Pre) 2020

Ans. (a)

See the explanation of the above question.

63. The joint sitting of both Houses of Indian Parliament is held in connection with:

- (a) Constitution Amendment Bill
- (b) Money Bill
- (c) Ordinary Bill
- (d) Election of the Vice-President of India

U.P.P.C.S. (Pre) 1997

Ans. (c)

See the explanation of the above question.

64. A legislative bill may be introduced in which House of Parliament?

- (a) Lok Sabha
- (b) Rajya Sabha
- (c) Either House of Parliament
- (d) None of the above

M.P.P.C.S. (Pre) 2010

Ans. (c)

A Legislative Bill can be introduced in either House of the Parliament, but the Money Bill can be introduced only in the Lok Sabha and a Bill related to the creation of All-India services can only be introduced in the Rajya Sabha.

65. With reference to the Indian Parliament, consider the following statements :

1. A bill pending in the Lok Sabha lapses on its dissolution.
2. A bill passed by the Lok Sabha and pending in the Rajya Sabha lapses on the dissolution of the Lok Sabha.
3. A bill in regard to which the President of India notified his/her intention to summon the Houses to a joint sitting lapses on the dissolution of the Lok Sabha.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 1 and 2
- (c) 2 and 3
- (d) 3 only

I.A.S. (Pre) 2024

Ans. (b)

As per Article 107 (5) of the Constitution of India, "A Bill which is pending in the House of the People, or which having been passed by the House of the People is pending in the Council of States, shall, subject to the provisions of Article 108, lapse on a dissolution of the House of the People." Hence, statements 1 and 2 are correct.

It is to be noted that as per Article 107 (4), "A Bill pending in the Council of States which has not been passed by the House of the People shall not lapse on a dissolution of the House of the People."

As per Article 108 (5). "A joint sitting may be held under this article (Article 108) and a Bill passed thereat, notwithstanding that a dissolution of the House of the People has intervened since the President notified his intention to summon the Houses to meet therein (for the joint sitting)." Thus, a bill in regard to which the President of India notified his/her intention to summon the Houses to a joint sitting does not lapse on the dissolution of the Lok Sabha. Hence, statement 3 is incorrect.

66. Which of the following statements is/are correct?

1. A Bill pending in the Lok Sabha lapses on its prorogation.
2. A Bill pending in the Rajya Sabha, which has not been passed by the Lok Sabha, shall not lapse on the dissolution of the Lok Sabha.

Select the correct answer using the code given below:

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2016

Ans. (b)

According to Article 107(3) of the Indian Constitution, a Bill pending in Parliament shall not lapse by reason of the prorogation of the House. So, statement (1) is not correct. Article 107(4) of the Indian Constitution states that a Bill pending in the Council of States that has not been passed by the House of People shall not lapse on the dissolution of the House of People. Thus, statement (2) is correct.

67. Which of the Constitutional Provision lays down that taxes can neither be levied nor collected without the authority of law?

- (a) Article 265
- (b) Article 266
- (c) Article 300
- (d) Article 368

U.P.P.C.S. (Mains) 2007

Ans. (a)

Article 265 of the Constitution lays down that no tax shall be levied or collected except by the authority of law. Article 266 contains provisions for the Consolidated Funds and Public Accounts of India and the States, Article 300 deals with suits and proceedings and Article 368 is related to the procedure of Constitutional Amendments. Thus option (a) is correct.

68. Who has the right to issue money from the Consolidated Fund of India?

- (a) Comptroller and Auditor General
- (b) Finance Minister of India
- (c) Authorized Minister
- (d) None of the above

U.P.P.C.S. (Pre) 2000

Ans. (d)

According to Article 266 of the Indian Constitution, all revenues received by the Government of India, all loans raised by that Government by the issue of treasury bills, loans or ways and means, advances and all money received by that Government in the repayment of loans shall form one Consolidated Fund of India. It is under the control of Parliament. No amount can be withdrawn from the Consolidated Fund without the authorization from the Parliament. So the authority to issue money according to the Budgetary provisions from the Consolidated Fund can only be obtained if the Parliament permits it according to appropriation under Article 114.

69. All revenues received by the Union Government by way of taxes and other receipts for the conduct of Government business are credited to the

- (a) Contingency Fund of India
- (b) Public Account
- (c) Consolidated Fund of India
- (d) Deposits and Advances Fund

I.A.S. (Pre) 2011

Ans. (c)

All revenues received by the Union Government by way of taxes and other receipts for the conduct of Government business are credited to the Consolidated Fund of India as enumerated in Article 266 of the Constitution of India.

70. The authorization for the withdrawal of funds from the Consolidated Fund of India must come from –

- (a) The President of India
- (b) The Parliament of India
- (c) The Prime Minister of India
- (d) The Union Finance Minister

I.A.S. (Pre) 2011

Ans. (b)

Any withdrawal of an amount from the Consolidated Fund of India must be approved by the Parliament as mentioned in Article 114 of the Indian Constitution.

71. Which one of the following is not a mandatory expenditure charged on the Consolidated Fund of India?

- (a) Debt Charges for which Government of India is liable.
- (b) Salary and Pension of the members of the Election Commission of India.
- (c) Pension payable to Judges of High Courts.
- (d) Allowances of Deputy Chairman of Council of States.

U.P.P.C.S (Spl) (Mains) 2004

Ans. (b)

The following expenditures shall be the expenditures charged on the Consolidated Fund of India-

- (a) The emoluments and allowances of the President and other expenditures relating to his office.
- (b) The salaries and allowances of the Chairman and the Deputy Chairman of the Council of States and the Speaker and the Deputy Speaker of the House of the People.
- (c) Debt charges for which the Government of India is liable including interest, sinking fund charges and redemption charges, and other expenditures relating to the raising of loans and the service and redemption of debt.
- (d) (i) The salaries, allowances, and pensions payable to or in respect of Judges of the Supreme Court.
(ii) The pensions payable to or in respect of Judges of the Federal Court.
(iii) The pensions payable to or in respect of Judges of any High Court which exercises jurisdiction in relation to any area included in the territory of India or which at any time before the commencement of this Constitution exercised jurisdiction in relation to any area included in 86 [a Governor's Province of the Dominion of India].
- (e) The salary, allowances, and pension payable to or in respect of the Comptroller and Auditor-General of India.
- (f) Any sums required to satisfy any judgment, decree or award of any court or arbitral tribunal.
- (g) Any other expenditure declared by this Constitution or by Parliament by law to be so charged.

72. Which one of the following expenditures is not charged on the Consolidated Fund of India?

- (a) Salary and allowances of the President of India
- (b) Salary and allowances of the Vice-President of India
- (c) Salary and allowances of the Justices of the Supreme Court of India
- (d) Salary and allowances of the Speaker of the Lok Sabha

U.P.P.C.S. (Pre) 2006

Ans. (b)

According to Article 112 of the Indian Constitution, the salary and allowances of the Vice-President are not included in the expenditure charged on the Consolidated Fund of India, Thus, option (b) is the correct answer.

Note: The Vice-President of India receives his salary and allowances as the Chairman of the Rajya Sabha. Salaries and Allowances of the Chairman and Deputy Chairman are charged to the Consolidated Fund of India.

73. Which one of the following expenditure is not charged on the Consolidated Fund of India?

- (a) Salary and allowances of the Chief Justice of India
- (b) Salary and allowances of the Comptroller and Auditor General of India
- (c) Salary and allowances of the Prime Minister of India.
- (d) Salary and allowances of the Chairman of the Union Public Service Commission.

U.P.P.C.S. (Mains) 2011

Ans. (c)

Only discussion on expenditure charged on the Consolidated Fund can happen, not voting. According to Article 112 (3) of the Indian Constitution, the salary and allowances of the President, salary and allowances of the Chief Justice of India, Pensions payable to Judges of High Courts, salary and allowances of the Comptroller and Auditor General of India, salary and allowances of the Chairman and Deputy Chairman of the Council of States and Speaker and Deputy Speaker of Lok Sabha, are the expenditures charged on the Consolidated Fund of India.

74. Which of the following Articles of the Indian Constitution is related to Contingency Fund?

- (a) Article 265
- (b) Article 266
- (c) Article 267
- (d) Article 268

U.P.P.C.S. (Pre) 2021

Ans. (c)

Article 267: Contingency Fund: Parliament may by law establish a Contingency Fund in the nature of an imprest to be entitled the Contingency Fund of India into which shall be paid from time to time such sums as may be determined by such law, and the said Fund shall be placed at the disposal of the President to enable advances to be made by him out of such Fund for the purposes of meeting unforeseen expenditure pending authorisation of such expenditure by Parliament by law under Article 115 or Article 116.

75. How can the President spend from Contingency Fund?

- (a) In time of natural calamity
- (b) After Authorisation of parliament.

- (c) Before Authorisation of Parliament.
- (d) Cannot spend.

U.P.P.C.S. (Pre) 1991

Ans. (c)

The Contingency Fund of India is established by Parliament by law under Article 267(1) of the Indian Constitution. This fund is placed at the disposal of the President of India, and no approval from the Parliament is needed to withdraw the money from the fund. He may make advances out of this fund. It is to be used for the purpose of meeting unforeseen expenditures.

76. With reference to the Union Government, consider the following statements:

1. The Department of Revenue is responsible for the preparation of Union Budget that is presented to the Parliament.
2. No amount can be withdrawn from the Consolidated Fund of India without the authorization from the Parliament of India.
3. All the disbursements made from Public Account also need the authorization from the Parliament of India.

Which of the statement(s) given above is/are correct?

- (a) 1 and 2 only
- (b) 2 and 3 only
- (c) 2 only
- (d) 1, 2 and 3

I.A.S. (Pre) 2015

Ans. (c)

The Ministry of Finance is responsible for the preparation of the Union Budget which is presented to the Parliament. Therefore statement 1 is incorrect. No amount can be withdrawn from the Consolidated Fund of India without the authorization of the Parliament of India as provided in Article 114(3) of the Constitution. Thus, statement 2 is correct. The disbursement made from public account does not require authorization from the Parliament of India. The control of this account is in the hands of the Executive. Thus statement 3 is also incorrect.

77. Which of the following is responsible for preparation and presentation of union budget in the Parliament?

- (a) Department of Revenue
- (b) Department of Economic Affairs
- (c) Department of Financial Services
- (d) Department of Expenditure

I.A.S. (Pre) 2010

Ans. (b)

The Department of Economic Affairs is responsible for the preparation and presentation of the Union Budget in the Parliament.

78. How many (number) 'Demands for Grants' are put before the Parliament as a part of the Annual Budget in pursuance to Article 113 of the Constitution?

- (a) 98
- (b) 96
- (c) 104
- (d) 109
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre), 2022

Ans. (e)

Article 113 of the Constitution requires that any proposal or estimate seeking withdrawal of money from the Consolidated Fund of India should be presented to the Lok Sabha in the form of a demand for grants. Generally, one demand for a grant is presented in respect of each ministry or department. However, for large ministries and departments, more than one demand is presented. No demand for a grant shall be made except on the recommendation of the president. In budget 2025-26, the total grants presented are 102 and in budget 2021-22, it was 101. So the option (e) is true.

79. Money Bill has been defined by the Constitution under Article:

- (a) 109
- (b) 110
- (c) 111
- (d) Both (b) and (c)

U.P.P.C.S. (Pre) 2000

Ans. (b)

Article 109 - Special Procedure with respect to Money Bills.
Article 110 - Definition of Money Bill
Article 111 - Permission on Bills

80. The Money Bill is defined in which Article of the Constitution of India?

- (a) Article 109
- (b) Article 110
- (c) Article 111
- (d) Article 112

U.P.P.C.S. (Pre) 2019

Ans. (b)

See the explanation of the above question.

81. A Bill is deemed to be a Money Bill (as per Article 110), if it contains provisions dealing with matters relating to:

- (a) Regulation of borrowings of the government of India
- (b) Custody of consolidated fund of India
- (c) Audit of accounts of a State
- (d) All the above

Jharkhand P.C.S. (Mains) 2016

Ans. (d)

According to Article 110, a Bill shall be deemed to be a Money Bill if it contains only provisions dealing with all or any of the following matters, namely.
(a) The imposition, abolition, remission, alteration or regulation of any tax;

(b) The regulation of the borrowing of money or the giving of any guarantee by the Government of India, or the amendment of the law with respect to any financial obligations undertaken or to be undertaken by the Government of India;

(c) The custody of the consolidated fund or the contingency fund of India, the payment of money into or the withdrawal of money from any such Fund;

(d) The appropriation of money out of the consolidated fund of India;

(e) The declaring of any expenditure to be expenditure charged on the consolidated fund of India or the increasing of the amount of any such expenditure;

(f) The receipt of money of account of the consolidated fund of India or the public account of India or the Custody or issue of such money or the audit of the accounts of the Union or of a State; or

(g) Any matter incidental to any of the matters specified in sub-clause (a) to (f).

82. What constitutes the definition of money Bill under article 110 of the Indian Constitution?

- (a) The imposition, abolition, alteration or regulation of any tax
- (b) The regulation of borrowings of money
- (c) The appropriation of money out of the consolidated fund of India
- (d) Declaration of any expenditure to be charged on the consolidated fund of India
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (e)

See the explanation of the above question.

83. Which one of the following subject is not included in the provisions of the Money Bills?

- (a) Provision regarding taxes
- (b) Provision regarding borrowings
- (c) Provision regarding custody of the Consolidated and Contingency Funds
- (d) Provision for imposition of fines or penalties

U.P. U.D.A./L.D.A. (Pre) 2010

Ans. (d)

Under Article 110 of the Constitution, it has been specified that the provisions regarding taxes, borrowings and custody of the Consolidated and Contingency Funds are included in the provisions of the Money Bill. But, provisions for the imposition of fines or penalties are not included in the provisions of the Money Bill.

84. Which of the following is not correct?
- Each money bill is finance bill.
 - Each finance bill is not a money bill.
 - Finance bill can be introduced in Lok Sabha only.
 - Finance bill is presigned by the President.
 - Rajya Sabha can detain the finance bill for 14 days.
 - President can not refuse to sign on finance bill.
 - Rajya Sabha can amend the finance bill.
 - On deadlock on finance bill joint session can be called.

- (a) ii iv (b) v vi
(c) iii vii (d) i viii
(e) iv vi

Jharkhand P.C.S. (Pre) 2016

Ans. (b)

Money Bill is mentioned in the Article 110 (1) of the Indian Constitution. Each Money Bill is a Finance Bill however each Finance Bill is not a Money Bill. Finance Bill and Money Bill can be introduced only in the Lok Sabha and only on the recommendation of the President. The Rajya Sabha has to return the Money Bill with or without its recommendation within 14 days. The Council of States can make amendments to it. In case of disagreement on the Finance Bill, a joint session can be called. The President can return a Finance Bill for reconsideration by the Houses.

85. Which one of the following statements about a Money Bill is not correct?

- A Money Bill can be tabled in either House of Parliament
- The Speaker of Lok Sabha is the final authority to decide whether a Bill is a Money Bill or not
- The Rajya Sabha must return a Money Bill passed by the Lok Sabha and send it for consideration within 14 days
- The President can not return a Money Bill to the Lok Sabha for reconsideration

I.A.S. (Pre) 2000

Ans. (a)

A Money Bill can be introduced only in the Lok Sabha. Rajya Sabha has very limited power in this regard. Rajya Sabha can delay this for a period not exceeding 14 days.

86. With reference to Finance Bill and Money Bill in the Indian Parliament, consider the following statements:

- When the Lok Sabha transmits Finance Bill to the Rajya Sabha, it can amend or reject the Bill.

- When the Lok Sabha transmits Money Bill to the Rajya Sabha, it cannot amend or reject the Bill, it can only make recommendations.
- In the case of disagreement between the Lok Sabha and the Rajya Sabha, there is no joint sitting for Money Bill, but a joint sitting becomes necessary for Finance Bill.

How many of the above statements are correct?

- (a) Only one (b) Only two
(c) All three (d) None

I.A.S. (Pre.) 2023

Ans. (b)

Financial bills, in a technical sense, are those bills that deal with fiscal matters, that is, revenue or expenditure, and are generally of three kinds: 1. Money bills-Article 110, 2. Financial bills (I)-Article 117 (1), 3. Financial bills (II)-Article 117 (3). But the Constitution, under Article 109, provides a special procedure in respect of Money Bills and Article 110 defines the "Money Bills". The Rajya Sabha has restricted powers regarding a money bill. It cannot reject or amend a money bill. It can only make the recommendations and it must return the bill to the Lok Sabha within 14 days, whether with or without recommendations. A financial bill (I) is similar to a money bill in two respects. Both of them can be introduced only in the Lok Sabha and not in the Rajya Sabha, and both of them can be introduced only on the recommendation of the President. In all other respects, a financial bill (I) is governed by the same legislative procedure applicable to an ordinary bill. Hence, it can be either rejected or amended by the Rajya Sabha. Hence statement 1 and statement 2 is correct. No joint sitting of the two houses is allowed with regard to a money bill under Article 108. However Financial bills (I) and Financial bills (II) are governed by the same legislative procedure applicable to an ordinary bill, the President may (not necessarily) summon a joint sitting of the two Houses to resolve the deadlock. Hence, statement 3 is not correct.

87. Who among the following decides whether a particular Bill is a Money Bill?

- (a) President (b) Prime Minister
(c) Speaker of Lok Sabha (d) The Cabinet

U.P.P.C.S. (Pre) 1992

Ans. (c)

Under Article 110 (3), it has been specified that if any question arises whether a Bill is a Money Bill or not, the decision of the Lok Sabha Speaker on this issue shall be final.

88. Who certifies the money bill?

- (a) President (b) Vice-President
(c) Speaker (d) Council of Ministers

Chhattisgarh P.C.S. (Pre) 2018

Ans. (c)

If any question arises about whether a Bill is a money Bill or not, the decision of the Speaker of the Lok Sabha is final. His decision in this regard cannot be questioned in any court of law or in either the house of parliament or even the president. When a money bill is transmitted to the Rajya Sabha for recommendation & presented to the president for assent, the speaker endorses on the bill his certificate that it is a money bill.

89. Who decides whether a Bill is Money Bill or not?

- (a) President (b) Speaker of Lok Sabha
(c) Finance Secretary (d) Finance Minister

U.P.P.C.S. (Mains) 2014

U.P.P.C.S. (Pre) 2007

Ans. (b)

See the explanation of the above question.

90. Which one of the following statements is correct regarding submission of Money bill?

- (a) The Finance Bill is presented in Rajya Sabha.
(b) It can be presented in either House of Parliament.
(c) It cannot be presented in Lok Sabha.
(d) It is presented in Lok Sabha.

U.P.U.D.A./L.D.A. (Pre) 2006

Ans. (d)

The UPPSC has used the term Finance Bill in its Hindi version of the question paper, however English version of the question paper has the term Money Bill. So, in this question, the commission's intention is Money Bill not the Finance Bill. Special procedure has been adopted in respect of Money Bills in Article 109 of the Constitution. Article 109 (1) states that the Money Bill cannot be presented in Rajya Sabha. So, the Money Bill is only presented in Lok Sabha.

91. The Finance Bill of Indian Government is presented in -

- (a) Upper House (b) Legislative Assembly
(c) Legislative Council (d) Lower House

M.P.P.C.S. (Pre) 2010

Ans. (d)

According to Article 117(1), a Bill or amendment making provision for any of the matters specified in sub-clause (a) to (f) of clause (1) of Article 110 shall not be introduced

except on the recommendation of the President and a Bill making such provision shall not be introduced in the Council of States.

92. Which of the following statements are correct in respect of a Money Bill in the Parliament?

1. Article 109 mentions special procedure in respect of Money Bills.
2. A Money Bill shall not be introduced in the Council of States.
3. The Rajya Sabha can either approve the Bill or suggest changes but cannot reject it.
4. Amendments to a Money Bill suggested by the Rajya Sabha have to be accepted by the Lok Sabha.

Select the answer using the code given below:

- (a) 1 and 2 only (b) 2 and 3 only
(c) 1, 2 and 3 (d) 1, 3 and 4

I.A.S. (Pre) 2024

Ans. (c)

Article 109 of the Constitution of India mentions special procedure in respect of Money Bills. Hence, statement 1 is correct.

As per Article 109 (1), a Money Bill shall not be introduced in the Council of States. Hence, statement 2 is correct.

As per Article 109 (2), after a Money Bill has been passed by the House of the People it shall be transmitted to the Council of States for its recommendations and the Council of States shall within a period of fourteen days from the date of receipt of the Bill return the Bill to the House of the People with its recommendations and the House of the People may thereupon either accept or reject all or any of the recommendations of the Council of States. Thus, The Rajya Sabha can either approve the Bill or suggest changes but cannot reject it and amendment to a Money Bill suggested by the Rajya Sabha can be either accepted or rejected by the Lok Sabha. Hence, statement 3 is correct while statement 4 is incorrect.

As per Article 109 (3), if the House of the People accepts any of the recommendations of the Council of States, the Money Bill shall be deemed to have been passed by both Houses with the amendments recommended by the Council of States and accepted by the House of the People. As per Article 109 (4), if the House of the People does not accept any of the recommendations of the Council of States, the Money Bill shall be deemed to have been passed by both Houses in the form in which it was passed by the House of the People without any of the amendments recommended by the Council of States. As per Article 109 (5), if a Money Bill passed by the House of the People and transmitted to the Council of States for its recommendations is not returned to the House of the People within the said period of fourteen days, it shall be deemed to have been passed by both Houses at the expiration of the said period in the form in which it was passed by the House of the People.

93. Which one of the following statements is correct?

- (a) A Money Bill is introduced in the Rajya Sabha.
- (b) A Money Bill can be introduced in either of the two Houses of the Parliament.
- (c) A Money Bill cannot be introduced in the Lok Sabha.
- (d) A Money Bill is introduced in the Lok Sabha.

U.P.P.C.S. (Mains) 2011

Ans. (d)

A Money Bill can be introduced only in the Lok Sabha. If any question arises about whether a Bill is a Money Bill or not, the decision of the Speaker thereon is final. The Speaker is under no obligation to consult anyone. A Money Bill cannot be referred to a joint session of the Parliament. Rajya Sabha is required to return the Money Bill within a period of 14 days from the date of its receipt. Thus, Rajya Sabha may withhold the bill for a maximum of 14 days [Art. 109(2)].

94. Money Bill can be presented

- (a) Only in the Lok Sabha
- (b) Only in the Rajya Sabha
- (c) In both the Houses
- (d) In joint meeting of both the Houses
- (e) None of the above / more than one of the above

63rd B. P.S.C. (Pre) 2017

Ans. (a)

See the explanation of the above question.

95. Of the following statements, which one is not correct?

- (a) The Rajya Sabha is powerless in money matters.
- (b) Money Bill is introduced in the Rajya Sabha.
- (c) The Rajya Sabha has to pass the Money Bill within 14 days after it has been passed by the Lok Sabha.
- (d) The Rajya Sabha may pass or return the Money Bill with some recommendations to the Lok Sabha.

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (b)

It has been laid down in Article 109 (1) of the Constitution of India that a Money Bill shall not be introduced in the Rajya Sabha. Article 109(2) lays down that, after a Bill has been passed by the Lok Sabha, it shall be transferred to the Rajya Sabha for its recommendations. In turn, the Rajya Sabha, within a period of 14 days of its receipt of the Bill, shall return the Bill with or without its recommendation to the Lok Sabha, which may accept or reject all or any of the recommendations of the Rajya Sabha.

96. Which one of the following statements is correct?

- (a) Money Bill is introduced in Rajya Sabha.
- (b) Money Bill is introduced in Lok Sabha.
- (c) It can be introduced in either of the Houses of the Parliament.
- (d) It cannot be introduced in Lok Sabha.

U.P.P.S.C. (GIC) 2010

Ans. (b)

See the explanation of the above question.

97. Money Bill is introduced in –

- (a) Lok Sabha
- (b) Rajya Sabha
- (c) Joint sitting of both the Houses
- (d) None of the above

U.P.P.C.S.(Pre) 2012

Ans. (a)

See the explanation of the above question.

98. A Money Bill under the Constitution of India is tabled in the –

- (a) Rajya Sabha
- (b) Public Accounts Committee
- (c) Lok Sabha
- (d) Lok Sabha and Rajya Sabha simultaneously

U.P.P.C.S. (Mains) 2015

Ans. (c)

See the explanation of the above question.

99. A Money Bill passed by Lok Sabha is deemed to have been passed by Rajya Sabha also when no action is taken by the Rajya Sabha within

- (a) 10 days
- (b) 14 days
- (c) 15 days
- (d) 16 days

U.P.P.C.S. (Pre) 2016

Ans. (b)

See the explanation of the above question.

100. If a Money Bill is accepted in Lok Sabha, Rajya Sabha can withhold it maximum upto –

- (a) 6 months
- (b) 4 months
- (c) 1 month
- (d) 14 days

U.P.P.C.S. (Pre) 1992

Ans. (d)

See the explanation of the above question.

101. Rajya Sabha can delay the Finance Bill sent for its consideration by Lok Sabha for a maximum period of-

- (a) One month
- (b) One year
- (c) Seven days
- (d) Fourteen days

U.P.P.C.S. (Pre) 2006

Ans. (d)

In the case of a Money Bill, the Council of State shall return the Bill to the House of People within fourteen days, and the ordinary Bill has no time limit. Since the options given in the question include fourteen days and the infinite time limit has not been given. Hence, the Finance Bill has been taken as a Money Bill. As all Money Bills are Financial Bills. The Money Bill is introduced in Lok Sabha.

102. In how many days Rajya Sabha has to return Money Bill to Lok Sabha?

- (a) Within 12 days
- (b) Within 14 days
- (c) Within 16 days
- (d) Within 18 days

U.P. Lower (Pre) 2009

U.P. Lower Sub. (Mains) 2013

U.P.R.O./A.R.O (Mains) 2014

Ans. (b)

See the explanation of the above question.

103. Which of the following procedures will enable the adoption of a Money Bill that was once passed by the Lok Sabha but was amended by the Rajya Sabha?

- (a) It will go to the President.
- (b) The Lok Sabha will have to pass it with 2/3rd majority of the members sitting and voting.
- (c) A Joint session of the two Houses will be called.
- (d) It will be deemed to have been passed if the Lok Sabha passes it again either by accepting or rejecting the amendments.

U.P.P.C.S. (Pre) 1994

Ans. (d)

According to Article 109, Lok Sabha has been given special powers regarding Money Bill. Money Bill can be introduced only in the Lok Sabha. It can be detained by Rajya Sabha for a maximum period of 14 days and cannot be amended or rejected by Rajya Sabha. The Money Bill returned by Rajya Sabha, with or without recommendation, may be accepted or rejected by Lok Sabha.

104. A Bill which merely involves expenditure and does not include any of the matters specified in Article 110 can be:

- (a) Initiated only in Lok Sabha
- (b) Initiated in either House of Parliament
- (c) Initiated only in Rajya Sabha
- (d) Initiated only in joint session of both House of Parliament

U.P.P.C.S. (Mains) 2016

Ans. (b)

Financial Bills (Which are not money bills) can be divided into two categories. In the first category, the Bills which contain provision for any of the matters Specified in Article 110(1) (a) to (f) of the Constitution are categorized as financial Bills under Article 117(1) of the Constitution. In the second category, those Bills which contain provision of expenditure from the consolidated fund of India are categorized as financial Bills under Article 117(3) of the Constitution. These can be introduced in either House of Parliament. However, the recommendation of the President is essential for consideration of these Bills.

105. Which of the following Articles of the Indian Constitution deals with the Annual Financial Statement?

- (a) Article 72
- (b) Article 88
- (c) Article 112
- (d) None of the above

Chhattisgarh P.C.S. (Pre) 2023

Ans. (c)

According to Article 112 of the Indian Constitution, the Union Budget of a year is referred as the Annual Financial Statement. It is a statement of the estimated receipts and expenditures of the government in a financial year (1 April of the current year and ends on 31 March of the following year). In the parliament, the budget goes through six stages :

- Presentation of Budget.
- General discussion.
- Scrutinising by departmental committees.
- Voting on demands for grants.
- Passing of Appropriation bill.
- Passing of Finance bill.

106. Under which Article of the Indian Constitution the Annual Financial Statement (Budget) is necessary to be laid before the Parliament ?

- (a) Article 113
- (b) Article 114
- (c) Article 112
- (d) Article 111

70th B.P.S.C Re-Exam 2024

Ans. (c)

According to Article 112 of the Indian Constitution, the President is required to cause an Annual Financial Statement—commonly known as the Union Budget to be laid before both Houses of Parliament at the commencement of each financial year. Annual Financial Statement is a Statement of the estimated receipts and expenditure of the Government of India.

107. Which one of the following terms does not appear in the Constitution of India?

- (a) Annual Financial Statement
- (b) Appropriation Bill
- (c) Budget
- (d) Consolidated Fund of India

U.P.P.C.S. (Mains) 2011

Ans. (c)

The word "Budget" is not mentioned in the Constitution of India. Under Article 112, the term "Annual Financial Statement" is mentioned.

108. Which one of the following statements is not correct with regard to control of Parliament on a budget?

- (a) Parliament does not have any role in the creation of the budget.
- (b) Parliament has the power to move on the charged expenditure on the Consolidated Fund.
- (c) Parliament has no power to impose a tax without the recommendation of the President.
- (d) Parliament has no power to increase any tax without the recommendation of the President.

I.A.S. (Pre) 2009

Ans. (b)

The charged expenditure upon the Consolidated Fund of India [Article 112(3)] is not submitted to the vote of Parliament, although there can be a discussion on the same in either House of Parliament.

109. Which of the following are the methods of Parliamentary control over public finance in India?

1. Placing Annual Finance Statement before the Parliament.
2. Withdrawal of money from Consolidated Fund of India only after passing the Appropriation Bill.
3. Provisions of supplementary grants and vote-on-account.
4. A periodic or at least a mid-year review of the programme of the Government against macro-economic forecasts and expenditures by a Parliamentary Budget Office.
5. Introducing Finance Bill in the Parliament.

Select the correct answer using the codes given below

- (a) 1, 2, 3 and 5
- (b) 1, 2 and 4
- (c) 3, 4 and 5
- (d) 1, 2, 3, 4, and 5

I.A.S. (Pre) 2012

Ans. (a)

The Parliament exercises following types of control over the expenditure –

- (i) No Money can be withdrawn from the consolidated fund of India under Article 114 of the Indian Constitution. Without a Bill for the appropriation.
- (ii) Provisions relating to supplementary grant and vote on account are given in Article 115 and Article 116 of the Constitution.
- (iii) Article 107 is related to Provisions as to introduction and Passing of Bills.
- (iv) Placing Annual Financial Statement before the Parliament.

110. If the annual Union Budget is not passed by the Lok Sabha...

- (a) The Budget is modified and presented again
- (b) The Budget is referred to the Rajya Sabha for suggestions
- (c) The Union Finance Minister is asked to resign
- (d) The Prime Minister submits the resignation of Council of Ministers

I.A.S. (Pre) 2011

Ans. (d)

If the annual Union Budget is not passed by the Lok Sabha, the Prime Minister submits the resignation of the Council of Ministers because it would mean that the government has lost majority in the Lok Sabha.

111. With reference to the Parliament of India, consider the following statements:

1. A private member's bill is a bill presented by a Member of Parliament who is not elected but only nominated by the President of India.
2. Recently, a private member's bill has been passed in the Parliament of India for the first time in its history.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2017

Ans. (d)

A private member's Bill is a Bill presented by any member other than a Minister. The difference between the two cases is that any member other than a Minister desiring introduce a Bill has to give a notice of his intention and to ask for

leave of the House to introduce the Bill. If a Bill has been published in the official gazette before its introduction, no motion for leave to introduce the Bill is necessary. About a dozen private Bills have been passed since the independence. Thus, neither statement 1 nor statement 2 is correct.

112. Economic Survey is presented in Parliament every year

- (a) Before presentation of the Budget for the coming year
- (b) After presentation of the Budget for the coming year
- (c) After presentation of Finance Bill
- (d) And has no relation with presentation of the Budget

U.P.P.C.S. (Mains) 2004

Ans. (a)

The Economic Survey is presented in the Parliament every year before the presentation of the Budget for the coming year. Economic Survey contains the progress, activities and fiscal details of various sectors of the Economy for the current year.

113. 'Votes on Account' permits Union Government to:

- (a) Go for public loan
- (b) Borrow money from the Reserve Bank of India
- (c) Give grant-in-aid to States
- (d) Withdraw money from the Consolidated Fund of India for specific period

U.P.P.C.S. (Mains) 2004

Ans. (d)

Article 116 of the Indian Constitution states that in case the Appropriation Bill is not passed and the Union government requires withdrawal of money, it can, through Vote on Account, have the power to authorize by law the withdrawal of money from the Consolidated Fund of India.

114. Vote on Account is meant for

- (a) Vote on the report of CAG
- (b) To meet unforeseen expenditure
- (c) Appropriating funds pending passing of budget
- (d) Budget
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (c)

A Vote-on-Account is presented when Government has no time to present the full Budget, or elections are around the corner. When the Government does not have enough time to vote for a full budget before the commencement of the new

financial year, a special provision is made to make sure that there is enough money at the disposal of the Government to allow it to run the administration of the country. This special provision is known as Vote-on-Account. Article 116(1)(a) of the Constitution has the provision for vote-on-Account.

115. Votes on Account in the Parliament is necessary

- (a) When Government expenditure is more than Government revenue
- (b) For financing big projects in which huge amount of money is required
- (c) When regular budget is not expected to be passed in time
- (d) None of the above

U.P. Lower Sub. (Spl) (Pre) 2008

Ans. (c)

See the explanation of the above question.

116. What is the difference between 'Vote-on-Account' and 'interim budget'?

1. The provision of a 'Vote-on-Account' is used by a stable Government, while 'interim budget' is a provision used by a caretaker Government.
2. A 'Vote-on-Account' only deals with the expenditure in Government's budget while an 'interim budget' includes both expenditure and receipts.

Which of the statement(s) given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 2011

Ans. (b)

A Vote-on-Account is the expenditure outlay for the functioning of the government presented by the Finance Minister to the Parliament seeking approval for the estimated expenses to be incurred in the next few months. While vote-on-account is sometimes referred to as Interim Budget. Interim Budget is more than presenting the expenditure; it also provides the receipt estimates along with the estimated expenditure.

117. Estimates of expenditure are submitted to the Parliament of India in the form of –

- (a) Ad hoc Funds
- (b) Excess Grants
- (c) Supplementary Grants
- (d) Demands for Grants

Jharkhand P.C.S. (Pre) 2013

Ans. (d)

According to Article 113(2), the estimates of expenditure included in the Budget are required to be voted by the Lok Sabha in the form of Demands for Grants. The Lok Sabha has the right to pass the grant or reject the grant or permit the grant after reducing the amount.

118. The stages in the normal financial legislation include –

1. Presentation of the Budget
2. Discussion on the Budget
3. Passing of Appropriation Bill
4. Vote on Account
5. Passing of the Finance Bill

Select the correct answer from the code given below :

Code :

- (a) 1, 2 and 3 (b) 1, 3 and 4
(c) 1, 2, 3 and 4 (d) 1, 2, 3 and 5

U.P.P.C.S. (Mains) 2010

U.P.P.C.S. (Mains) 2005

Ans. (d)

Presentation of the Budget, discussion on the Budget, passing of Appropriation Bill and passing of the Financial Bill are the stages of normal financial legislation, while the vote on account, vote on credit and exceptional grants (Art. 116) are not included in the financial legislation.

119. Prior sanction of the President of India is required before introducing a Bill in the Parliament on –

1. Formation of a new State
2. Affecting taxation in which States are interested
3. Altering the boundaries of the States
4. Money bill

Considering the above statements, select the correct answer from the code given below:

Code :

- (a) 1, 2 and 3 (b) 2, 3 and 4
(c) 1, 2 and 4 (d) All of the above

U.P.P.C.S. (Mains) 2005

Ans. (d)

Prior sanction of the President of India is required before introducing a Bill in the Parliament on all four matters.

120. Which of the following proposals is related to the Union Budget?

- (a) Censure Motion (b) Calling Attention
(c) Cut motion (d) Adjournment motion

U.P. Lower Sub. (Pre) 2002

Ans. (c)

Censure Motion: Censure means the expression of strong disapproval or harsh criticism. It is generally against the policies of the Government.

Calling Attention : With the prior permission of the Speaker, a member may call the attention of a Minister to any matter of urgent public importance and the Minister may make a brief statement or ask for time to make a statement at a later hour or date.

Cut Motion : Cut motion is a power given to the member of the Lok Sabha to oppose a demand in the Financial Bill discussed by the Government. If a cut motion is adopted by the House and the Government does not have the numbers, it is obliged to resign. However the Lok Sabha has the right to permit the grant after reducing the amount, and they do so by cut motion which are of three types-token cut, policy cut, and frugality cut.

Adjournment Motion: It is a motion to draw the attention of members of the House on a subject or matter of public importance.

121. What is the object of "cut motion" in Parliament ?

- (a) To move a proposal to reduce expenditure in the budget proposals
(b) To restrict day-to-day financial expenditure of the government
(c) To restrict grants from consolidated fund of India
(d) To restrict the grants of the Government

70th B.P.S.C. Pre-2024

Ans. (a)

In the central budget, the proposal to amend the demand for grants is presented in the lower house of Parliament. This proposal is called a Cut-Motion. Through this motion, the government's budget proposals are debated, and the proposed amount is reduced if necessary. There are three types of Cut-Motion proposals: Disapproval of Policy Cut-Motion, Economic Cut-Motion and Token Cut-Motion.

122. What is the object of "Cut Motion"?

- (a) To put check on the policies of the Government
(b) To stop the functioning of ruling party
(c) To move a proposal to reduce expenditure in the Budget proposals
(d) Rejection of complete financial dealings of the Government
(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (c)

The motion to reduce the amount of demands for grants are called "Cut Motion". The object of a cut motion is to draw the attention of the House to the matter specified therein.

123. Which one of the following is not correctly matched?

- (a) Policy cut motion - Budget demand be reduced to Rs. one
- (b) Economy cut motion - Budget demand be reduced by a specified amount
- (c) Token cut motion - Budget demand be reduced by rupees one hundred
- (d) Vote on Account - Parliamentary sanction of all budgetary demands for grants in a financial year.

U.P.P.C.S. (Pre) 2017

Ans. (d)

A vote on account is the process by which an incumbent government obtains votes from Parliament to draw money from the consolidated fund of India to meet its expenses until the elections are done. Article 116 of the Indian Constitution pertains to votes on account, votes of credit and exceptional grants.

124. The Provision for the Calling Attention Notices has restricted the scope of which of the following?

- (a) Short duration discussion
- (b) Question Hour
- (c) Adjournment Motion
- (d) Zero Hour

U.P.P.C.S (Pre) 2010

Ans. (c)

The concept of "Calling Attention" is given by India. It is a new concept in the modern Parliamentary procedure. Question and supplementary questions are asked during this parliamentary procedure. The Parliament can move the call attention motion to call the attention of a minister towards any matter of urgent public importance. It is like an Adjournment Motion, but It does not have the part of condemnation.

125. The Parliament of India exercises control over the functions of the Council of Ministers through

1. Adjournment motion
2. Question hour
3. Supplementary questions

Select the correct answer using the code given below:

- (a) 1 only
- (b) 2 and 3 only
- (c) 1 and 3 only
- (d) 1, 2 and 3

I.A.S. (Pre) 2017

Ans. (d)

The Parliament of India exercises control over the functions of the Council of Ministers through 'Adjournment Motion', 'Question Hour' and 'Supplementary Question'. This can be understood as:

Adjournment Motion : The primary object of an adjournment motion is to draw the attention of the government to a matter of urgent public importance in respect of which a starred question, discussion of short duration or a resolution with requisite notice shall be too late.

Question Hour is the first hour of every sitting of Parliament generally reserved for asking and answering of questions. Questions asked to a Minister are of three types- A starred Question (to which a member desires an oral answer in the House, supplementary questions can be asked thereon. Only 20 questions can be listed for oral answer on a day), An Unstarred Question (one which is not called for oral answer in the House and on which no supplementary questions can be asked) and A Short Notice Question (one which is related to matter of urgent public importance and can be asked with shorter notice than the period of notice prescribed for an ordinary question and followed by supplementary questions).

126. What is correct about the starred question?

- (i) Answer is given oral
- (ii) Answer is given in written
- (iii) Supplementary questions can be asked
- (iv) Supplementary questions cannot be asked
- (v) Answers can be discussed.
- (vi) Speaker controls answer

Codes :

- (a) (ii) (iv)
- (b) (i) (iii)
- (c) (v) (vi)
- (d) (iii) (v)
- (e) (ii) (vi)

Chhattisgarh P.C.S. (Pre) 2014

Ans. (b)

A starred question is one to which a member desires an oral answer in the House and which is distinguished by an asterisk (*) mark. When a question is answered orally, supplementary questions can be asked thereon. Only 20 questions can be listed for oral answer on a day. An unstarred question is one which is not called for oral answer in the House and on which no supplementary questions can consequently be asked.

127. In the Parliament of India, the purpose of an adjournment motion is –

- (a) To allow a discussion on a definite matter of urgent public importance
- (b) To let opposition members collect information from the ministers

- (c) To allow a reduction of specific amount in demand for grant
- (d) To postpone the proceedings to check the inappropriate or violent behaviour on the part of some members

I.A.S. (Pre) 2012

Ans. (a)

The main purpose of an adjournment motion in the Parliament of India is to allow a discussion on a matter of urgent public importance.

128. Statement(A) : N.D.A. Government does not like discussion under Rule 184 of Rules of Procedure and Conduct of Business in Lok Sabha.

Reason(R) : This Rule provides for voting also along with discussion.

Select the correct answer using :

Code :

- (a) (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) (A) and (R) are true, but (R) is not correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P.U.D.A./L.D.A. (Pre) 2002

U.P.P.C.S. (Pre) 2001

Ans. (a)

Both, the statement (A) and Reason (R), are true, and (R) is the correct explanation of (A). According to Rule 184, after a discussion on a matter, voting shall take place, if the ruling Party gets fewer votes in its favour, then it may lose the ruling position.

129. Under Rule 377 of Rules and Procedure and Conduct of Business in Lok Sabha, the maximum number of matters that can be raised by Lok Sabha members in one day are

- (a) 19
- (b) 20
- (c) 21
- (d) 22

R.A.S/R.T.S (Pre) 2018

Ans. (*)

Matters which are not points of order or which cannot be raised under the rules relating to Questions, short Notice Questions, calling Attention, Motions etc, can be raised under rule 377.

Notice for raising a matter under rule 377 is to be given in writing and addressed to the Secretary - General, specifying clearly the text of the matter to be raised.

No matter can be raised until the speaker has given his/her consent.

As per the decision taken at a meeting of the speaker with Leaders of Parties. In 2015, the number of matters to be raised under Rule 377 has been increased from 20 to 30 per day to enable more members to raise their issues.

130. What is meaning of Guillotine in Parliamentary Procedure?

- (a) To stop the debate on the bill
- (b) To continue the debate on the bill
- (c) Boycott of house by members
- (d) To adjourn the house
- (e) To adjourn the house for the day

Chhattisgarh P.C.S. (Pre) 2017

Ans. (a)

Closure Motion - A motion moved by a member to cut short the debate on a matter before the House. There are four kinds of Closure Motions, Guillotine is one of them.

In Guillotine, the undiscussed clauses of a bill or a resolution are also put to vote along with the discussed ones due to want of time (as the time allotted for the discussion is over)

131. With reference to Indian Polity, which one of the following statements is correct?

- (a) Planning Commission is accountable to Parliament
- (b) President can make ordinance only when either of the two Houses of Parliament is not in session
- (c) The minimum age prescribed for appointment as a Judge of the Supreme Court is 40 years
- (d) National development Council is constituted of Union Finance Minister and the Chief Ministers of all the States

I.A.S. (Pre) 2002

Ans. (b)

National Development Council is presided over by the Prime Minister of India. Thus it can not be constituted without the Prime Minister. Hence, option (d) is wrong. Under Article 123 of the Constitution, if at any time, except when both houses of parliament are in session, the president is satisfied that circumstances exist which render it necessary for him to take immediate action, he may promulgate such ordinances as the circumstances appear to him to require. Thus option (b) is the correct answer.

132. Examine the following statements and choose the correct answer from the given options-

- 1. Right to Property is not a Fundamental Right now.
- 2. Rajya Sabha can stop a Financial Bill.

3. In the Preamble of Indian Constitution Secular and Democratic words were added by 42nd amendment of the Indian Constitution.
4. Any dispute of the Parliament can be resolved by the system of Speaker of the Lok Sabha.

Code :

- (a) 1 and 2 (b) 1 and 3
(c) 1 and 4 (d) 2 and 3

U.P.P.C.S. (Mains) 2007

Ans. (a)

If the Finance Bill is not a Money Bill, Rajya Sabha can hold it like an ordinary Bill. However if the Finance Bill is a Money Bill, Rajya Sabha can stop it for 14 days only. Thus Rajya Sabha can stop the Financial Bill.

By the 42nd Amendment Act, 1976 of the Constitution, the characterization of India as a 'Sovereign Democratic Republic' in the Preamble was changed to 'Sovereign Socialist Secular Democratic Republic.' The word 'Unity of the Nation' was replaced by 'Unity and Integrity of the Nation' in The Preamble. Statement (3) is wrong. In the case of any disagreement in both the Houses of the Parliament, there is a provision of Joint Session. However, there is no such provision made under which a dispute of the Parliament can be resolved by the Speaker of the Lok Sabha.

By the 44th Amendment Act 1978, the Right to Property ceased to be a fundamental right and became a legal right (Article 300-A). Thus, option (a) is the correct answer.

133. The Secretariat of Parliament of India is –

- (a) Under Minister of Parliamentary Affairs
(b) Under President
(c) Independent of the Government
(d) Under the Supreme Court

M.P.P.C.S. (Pre) 2010

Ans. (c)

The idea of a separate secretariat for the Parliament of India, independent of the Executive, was mooted as early as in January 1926 by the then President of the Central Legislative Assembly, Late Shri Vithalbhai J. Patel. Article 98 of the Constitution specifies that each House of Parliament shall have a separate secretariat, which is independent of the Government.

134. With reference to the post's in Secretariate of the Parliament, which of the following statement/s is/are correct?

- (1) Common posts may be created for the Secretariate of each House of Parliament.
(2) The Parliament has right to regulate the service conditions of Secretariate staff of either House of it.

Select the correct answer from the code given below:

Code :

- (a) Only (2) (b) Neither (1) nor (2)
(c) Only (1) (d) Both (1) and (2)

U.P.P.C.S. (Pre.) 2023

Ans. (d)

According to the Article 98(1) of the Indian Constitution, Each House of Parliament shall have a separate secretarial staff. Provided that nothing in this clause shall be construed as preventing the creation of posts common to both Houses of Parliament and according to article 98(2) of the Indian constitution, Parliament may by law regulate the recruitment and the conditions of service of persons appointed to the secretarial staff of either House of Parliament. So, statements (1) and (2) both are correct. Hence, option (d) is the correct answer.

135. Sovereignty of Indian Parliament is restricted by –

- (a) Powers of the President of India
(b) Judicial review
(c) Leader of the opposition
(d) Powers of the Prime Minister of India

U.P.P.C.S. (Mains) 2004

Ans. (b)

The Parliament is the supreme legislative body, but the laws made by the legislature do not infringe upon the Basic Structure of the Constitution. The Supreme Court has the power of judicial review to check the validity of the laws made by the Parliament.

136. The Golden Jubilee of Indian Parliament was celebrated on –

- (a) 01-01-1997 (b) 15-08-1997
(c) 26-01-2002 (d) 13-05-2002

U.P.P.C.S. (Mains) 2008

Ans. (d)

The Golden Jubilee of the Indian Parliament was celebrated on May 13, 2002 (May 13, 1952 the Parliament was constituted) for completing 50 years of its formal establishment.

137. Which architect has designed the new building of the Indian Parliament?

- (a) Ravi Modi (b) Bimal Roy
(c) Bimal Patel (d) D. Radhakrishnan

Jharkhand P.C.S. (Pre) 2023

Ans. (c)